

23STCV20228 23STCV20228

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-24

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Case Number: 23STCV20228 Hearing Date: August 24, 2026 Dept: 514

Mondragon v.

Bodega Latina Corporation

23STCV20228

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Form Interrogatories
(Set Three)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Special
Interrogatories (Set Two)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Special
Interrogatories (Set Four)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Special
Interrogatories (Set Five)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Requests
for Production (Set Four)

Tentative Ruling

The motions are granted in part and denied in
part. The requests for sanctions are
denied.

Background

In this matter, Plaintiff Anthony Mondragon alleges ("Plaintiff") that on April 29, 2023, he slipped and fell while shopping in a supermarket owned, operated, or controlled by defendants.

Plaintiff filed the complaint in this action on August 23, 2023, naming as defendants Bodega Latina Corporation, Doe Store Manager, and Does 1 through 100, and asserting causes of action for (1) premises liability and (2) general negligence.

On September 15, 2023, Plaintiff amended the complaint to name Chedraui USA, Inc. as Doe 1.

On October 16, 2023, Chedraui USA, Inc., also erroneously sued as Bodega Latina Corporation ("Defendant"), filed an answer to the complaint.

In April and May 2026, the Court, at the request of Plaintiff, dismissed Doe Store Manager and Bodega Latina Corporation without prejudice.

Currently before the Court and set for hearing on August 24, 2026, are five motions, all filed on June 22: (1) Motion to Compel Defendant to Provide Further Responses to Form Interrogatories (Set Three); (2) Motion to Compel Defendant to Provide Further Responses to Special Interrogatories (Set Two); (3) Motion to Compel Defendant to Provide Further Responses to Special Interrogatories (Set Four); (4) Motion to Compel Defendant to Provide Further Responses to Special Interrogatories (Set Five); and (5) Motion to Compel Defendant to Provide Further Responses to Requests for Production (Set Four).

On August 10 and 11, Defendant filed oppositions. On August 17, Plaintiff filed replies in support of two of the five motions (relating to Special Interrogatories, Sets Four and Five).

Each side requests monetary sanctions.

Trial is set for February 8, 2027.

Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.”
(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a
“concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall
impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

Plaintiff seeks Defendant’s further responses to one set of form interrogatories, three sets of special interrogatories, and one set of requests for production. The Court addresses each in turn.

Form
Interrogatories (Set Three)

Plaintiff moves to compel further responses to Form Interrogatories (Set Three) 17.1, as it

relates to Requests for Admissions ("RFAs") Nos. 81, 93-100, 118-122, 137-168, 175-179, 180, 181-184, 189, 190, 192, and 198.

As a threshold matter, Defendant argues that the motion was not timely noticed. The motion was filed on June 19 and initially noticed for hearing on July 15. Although this appears to be less than the notice required by statute, Plaintiff cured that defect by continuing the hearing to August 24. Accordingly, the Court proceeds to the merits.

The motion is granted as to Form Interrogatory 17.1, subpart (c) (only) as it relates to RFAs No. 81, 93-100, 118-122, 137-168, 175-184, 189-190, 192, and 198. The motion is otherwise denied.

Special Interrogatories (Set Two)

Plaintiff moves to compel further responses to Special Interrogatories Nos. 100, 105, 108, and 112.

As a threshold matter, Defendant argues that the motion was not timely noticed. The motion was filed on June 19 and initially noticed for hearing on July 15. Although this appears to be less than the notice required by statute, Plaintiff cured that defect by continuing the hearing to August 24. Accordingly, the Court proceeds to the merits.

The four interrogatories at issue ask the following:

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Was the CASE inspected prior to August 29, 2023?

-
Prior to August 29, 2023, IDENTIFY each person/entity who/which performed any maintenance on the CASE?

-
Was the CASE repaired prior to August

29, 2023?

-

If, prior to August 29, 2023, there are any service contracts (such as for inspections, repairs or maintenance) for the refrigerated cases at the STORE, IDENTIFY with whom YOU contracted and the contracts' effective date(s).

Defendant's most recent responses to each interrogatory is as follows:

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Responding Party does not have records of previous inspections of the unit.

These responses are incomplete and evasive. Plaintiff did not ask whether Defendant had records of inspections. Plaintiff asked four specific questions, and Defendant did not answer them. It is possible, for example, that records do not exist but someone has a recollection of responsive facts.

Defendants must provide complete and straightforward answers to the interrogatories as asked. (Code Civ Proc., § 2030.220, subd. (a).) If Defendant has no responsive information, it must say so in a code-compliant manner. (See id., subd. (c).)

Plaintiff's motion is granted.

Special
Interrogatories (Set Four)

Plaintiff initially moved to compel further responses to Special Interrogatories Nos. 124-127 but now seeks a further response only as to No. 124.

Special
Interrogatory No. 124 states:

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IDENTIFY each person who YOU have had perform surveillance on Anthony Mondragon after May 1, 2023. (For purposes of these interrogatories, "IDENTIFY" shall require the name, company affiliation (if any), address and telephone number of each said individual. "YOU" shall be defined as the party to whom these interrogatories are directed, as well as its attorneys, insurers and agents.)

Defendant objects on the basis of attorney work product. (Plaintiff argues that the objection was waived, but the Court does not find waiver on this record.)

The work product doctrine is designed to "[p]reserve the rights of attorneys to prepare cases for trial with that degree of privacy necessary to encourage them to prepare their cases thoroughly and to investigate not only the favorable but the unfavorable aspects of those cases." (Code Civ. Proc., § 2018.020, subd. (a).) In addition, the work product doctrine "[p]revent[s] attorneys from taking undue advantage of their adversary's industry and efforts." (Id., subd. (b).)

The Legislature has provided for absolute protection for writings that reflect "an attorney's impressions, conclusions, opinions, or legal research or theories" and qualified protection for other work product. (Code Civ. Proc., § 2018.030.) As our Supreme Court has explained, however, "the Legislature ... did not define 'work product' and instead left the term open to judicial interpretation." (Coito v. Super. Ct. (2012) 54 Cal.4th 480, 494.)

A party claiming that the work product doctrine is a basis to resist or limit discovery has the initial burden of establishing the factual basis for the claim. (Zimmerman v. Super. Ct. (2013) 220 Cal.App.4th 389, 402; Citizens for Ceres v. Super. Ct. (2013) 217 Cal.App.4th 889, 911; Santa Rosa Memorial Hospital v. Super. Ct. (1985) 174 Cal.App.3d 711, 727-728.)

Defendant had disclosed

that surveillance of Plaintiff occurred on six specific dates in July 2025. (Derflinger Decl., ¶ 4.) The surveillance video has been

produced. Defendant objects to

disclosure of the identity of the person who conducted surveillance; counsel states that he retained the investigator for litigation purposes and selected the particular investigator at issue, among other candidates, based on counsel's evaluation of the investigator's fitness for the assignment given the overall circumstances of the litigation.

(Derflinger Decl., ¶¶ 3-5.)

Defendant has

not shown, however, that the identity of the investigator (as opposed to, for example, the content of his communication with the investigator) is subject to either absolute or qualified work product protection.

And even if the identify of the investigator were qualified work product, Plaintiff has made a sufficient showing to overcome that assertion: Plaintiff has no other means to discover the identity of a witness with potentially critical information regarding the nature and scope of Plaintiff's claimed injuries (which, after all, is the reason defendants retain investigators to conduct sub rosa surveillance).

Plaintiff's

motion is granted.

Special

Interrogatory (Set Five)

Plaintiff moves

to compel a further response to Special Interrogatories No. 128.

Special

Interrogatory No. 128 states:

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IDENTIFY each person who YOU have had

perform surveillance on Anthony Mondragon after July 20, 2025. (For purposes of these interrogatories, "IDENTIFY" shall require the name, company affiliation (if any), address and telephone number of each said individual.

"YOU" shall be defined as the party to whom these interrogatories are

directed, as well as its attorneys, insurers and agents.

The same analysis outlined above as to Special Interrogatory No. 124 applies here as well. The motion is granted.

Requests
for Production (Set Four)

Plaintiff moves
to compel further responses to Requests for Production Nos. 42 and 43.

As a threshold matter, Defendant argues that the motion was not timely noticed. The motion was filed on June 19 and initially noticed for hearing on July 15. Although this appears to be less than the notice required by statute, Plaintiff cured that defect by continuing the hearing to August 24. Accordingly, the Court proceeds to the merits.

Requests Nos. 42 and 43 seek the following:

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All documents, including but not limited to emails, text messages, memoranda, notes, correspondence, studies and minutes of any meetings, which relate to your decisions to use, not to use, or stop using SWEEP SHEETS in CHEDRAUI USA's markets (El Super, Smart & Final, and Fiesta), including any which reflect the pros, cons and reasoning for such decisions, and who (other than counsel) was involved.

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All documents identified by you in response to form interrogatory 17.1, served concurrently herewith.

Defendant's response to Request No. 42 is substantially code compliant. (See Code Civ. Proc., § 2031.230.)

As the motion to compel a further response to Form Interrogatory 17.1 subpart (d) was denied, no further response is required to Request No. 43.

Plaintiff's motion is denied.

Sanctions

Both parties request sanctions. As to these five motions, Plaintiff and Defendant has each been successful in part and unsuccessful in part. As to the matters on which each party has been unsuccessful in these motions, the Court finds that the party acted with substantial justification.

The requests for monetary sanctions are denied.

Conclusion

The Court GRANTS

IN PART and DENIES IN PART the motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to provide further responses to Form Interrogatories (Set Three).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without objections to subpart (c) of Form Interrogatory 17.1 as it relates to Requests for Admission No. 81, 93-100, 118-122, 137-168, 175-184, 189-190, 192, and 198 by no later than September 14, 2026.

The motion is
otherwise denied.

The Court GRANTS the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to provide further responses to Special Interrogatories (Set Two).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without objections to Special Interrogatories Nos. 100, 105, 108, and 112 by no later than September 14, 2026.

The Court GRANTS the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to provide further responses to Special Interrogatories (Set Four).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without objections to Special Interrogatory No. 124 by no later than September 14, 2026.

The Court GRANTS the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to provide further responses to Special Interrogatories (Set Five).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without objections to Special Interrogatory No. 128 by no later than September 14, 2026.

The Court DENIES the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to provide further responses to Requests for Production (Set Four).

The Court DENIES

both parties' requests for sanctions.

Plaintiff is ORDERED to give notice.